
BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

IN THE MATTER OF	)	CASE NO. 13-018
	)	
SCOTT BAIR,	)	SETTLEMENT AGREEMENT AND
	)	FINAL ORDER
RESPONDENT.	)	

Pursuant to Iowa Code sections 17A.10 and 272C.3(4) (2013), the Iowa Board of Behavioral Science ("Board") and Scott Bair ("Respondent") enter into the following Settlement Agreement and Final Order ("Order") to settle a contested case currently pending before the Board.

The allegations contained in the Statement of Charges against Respondent shall be resolved without proceeding to hearing, as the Board and Respondent stipulate as follows:

1. Respondent was issued Iowa license 00240 to practice as a mental health counselor.
2. Respondent's license is active and will expire on September 30, 2014.
3. The Board has jurisdiction over the parties and the subject matter of these proceedings.
4. A Notice of Hearing and Statement of Charges was filed against the Respondent on February 6, 2014. An Emergency Adjudicative Order indefinitely suspending Respondent's license was issued on February 6, 2014, in conjunction with the Notice of Hearing and Statement of Charges. A contested case hearing in this matter is scheduled for February 26, 2014.
5. Respondent has chosen not to contest the allegations in the Statement of Charges and acknowledges that the allegations, if proven in a contested case proceeding, would constitute grounds for the discipline agreed to in this Order.
6. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to a hearing on the charges, but waives his right to hearing and all attendant rights, including the right to appeal, by freely and voluntarily agreeing to this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.
7. Respondent is freely and voluntarily entering into this Order.
8. Respondent acknowledges that he has a right to be represented by counsel on this matter.
9. The State's legal counsel may present this Order to the Board *ex parte*.
10. This Order is subject to approval by a majority of the full Board. If the Board fails to approve this Order, it shall be of no force or effect to either the Board or Respondent. If the Board approves this Order, it shall be the full and final resolution of this matter.

11. This Order shall be part of the permanent record of Respondent and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.
12. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.
13. The Board's approval of this Order shall constitute a FINAL ORDER of the Board.

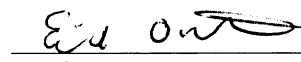
IT IS THEREFORE ORDERED:

14. Respondent agrees to **VOLUNTARILY SURRENDER** his license to practice mental health counseling to resolve this matter.
15. This voluntary surrender, when accepted by the Board, has the same force and effect as an order of revocation under 645 Iowa Administrative Code rule 12.1(5).
16. Respondent shall surrender his mental health counselor license to the Board immediately upon the Board's approval of this Order.
17. Respondent agrees not to use any words or titles which imply or represent that he is a licensed mental health counselor, or to otherwise hold himself out to the public as a licensed mental health counselor, or to engage in the practice of mental health counseling for which a license is required in the State of Iowa.
18. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 272C and 154D and 645 Iowa Administrative Code chapters 13 and 33.
19. Respondent may not request reinstatement for at least five years from the date of this Order. Prior to seeking reinstatement, Respondent must undergo a comprehensive mental health evaluation with a Board-approved evaluator. Respondent shall seek approval from the Board of the evaluator prior to undergoing the evaluation and shall contact the Board to have the investigative file sent to the evaluator prior to the evaluation. The evaluation must address Respondent's ability to safely practice as a licensed mental health counselor. Respondent may request reinstatement of his Iowa mental health counselor license after five years by filing an application for reinstatement under 645 Iowa Administrative Code rules 11.31 and 31.17. Respondent's license shall not be reinstated except upon a showing by Respondent that the basis for revocation of his license no longer exists, and that it is in the public interest for the license to be reinstated.

This Settlement Agreement and Final Order is voluntarily submitted by Respondent to the Board for its consideration on the 30th day of September, 2014.


SCOTT BAIR
Respondent

This Settlement Agreement and Final Order is accepted by the Iowa Board of Behavioral Science on the 6th day of November, 2014.


Chairperson
Iowa Board of Behavioral Science

cc: Laura Cathelyn
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